

		Accordingly, this action is hereby DISMISSED WITHOUT PREJUDICE as to Jouini for failure to serve within three years. (Code Civ. Proc., § 581, subd. (b)(4).) The clerk is directed to give notice of this ruling to all parties.
8.	<i>Kirk vs She</i> <i>2026-01573506</i>	Before the court is the hearing on the order to show cause why an order for sale of dwelling should not issue relating to property located at 24664 Las Patranas, Yorba Linda, California 92887, and owned by judgment debtor the Peter Seh Living Trust 2001, dated September 13, 2001 (Debtor). The order to show cause was entered on June 4, 2026, based on the application of judgment creditors Benjamin Kirk and Butterfield Property LLC (collectively, Creditors). As more fully set forth below, the hearing on the order to show cause is CONTINUED TO THURSDAY, SEPTEMBER 24, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for Creditors to establish proper service of all necessary documents in accordance with Code of Civil Procedure section 704.770. The court previously found Creditors' application satisfied the statutory requirements and therefore the court entered the order to show cause and instructed Creditors to give notice. (Code Civ. Proc., §§ 704.750, 704.760, 704.770; see ROA 17.) The court specifically stated in the order that all parties must be served as required by Code of Civil Procedure section 704.770. Here, Creditors fail to establish proper service in accordance with Code of Civil Procedure section 704.770. That code section required Creditors to serve (1) a copy of the order to show cause, (2) a copy of the application of the judgment creditor for the order to show cause, and (3) a copy of the notice of the hearing in the form prescribed by the Judicial Council. Those documents must be served on Debtor either personally or by mail. Those same documents also must be personally served on any occupant of the dwelling or, if there is no occupant present at the time service is attempted, the documents must be posted in a conspicuous place at the dwelling. Creditors filed a proof of service showing they posted copies of the application for order of sale and the order to show cause at the property. The proof of service, however, fails to show Creditors posted or otherwise served the notice of the hearing in the form prescribed by the Judicial Council.

		As for service on Debtor, Creditors filed a document entitled "Proof of Service by Mailing of Order to Show Cause." The documents attached, however, are receipts for mailing; they are not proofs of service. Those receipts do not comply with the requirements of the Code of Civil Procedure for proofs of service and they do not identify what documents were served (as noted above, three documents had to be served). Moreover, they do not show the capacity in which the persons identified were served. The Debtor is a trust, and therefore must be served by service on the trustee in that capacity. The court further notes, on July 9, 2026, Creditors filed a supplement to their application for an order to show cause to provide the court with a copy of a relevant quitclaim deed and the "Notice to Judgment Creditor Request for Application for Order for Sale of Dwelling (CCP 704.750)." There, however, is no proof of service showing this supplement was served on anyone. This document supplements the application for an order to show cause and therefore must be served just like the application. Based on the foregoing service deficiencies, the hearing on the order to show cause is CONTINUED as stated above for Creditors to make proper service as required by Code of Civil Procedure section 704.770 and to give notice of this ruling. All proofs of service must be filed at least 10 days before the continued hearing date. The court finds good cause to conduct the hearing on the order to show cause beyond the 45-day period established by Code of Civil Procedure section 704.770. Creditors' counsel is ordered to give notice of this ruling
9.	<i>Highland Mariposa Homeowners Association vs. Hoffman</i> 2026-01560973	Hearing VACATED and STATUS CONFERENCE SET based on notice of stay filed on May 6, 2026
10.	<i>M. vs. Huntington Beach Union High School District</i> 2026-01563406	Before the court is the petition by B.M., a minor by and through his guardian, Brian Maclyman (Petitioner), for relief from Government Code section 945. As more fully set forth below, the petition is CONTINUED TO OCTOBER 1, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for proper service and notice. Government Code section 946.6, subdivision (d), states, "A copy of the petition and a written notice of the time and place of hearing shall be served before the hearing as